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Provision of September 28, 2023

Register of provisions

No. 428 of September 28, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by

Prof. Pasquale Stanzione, President, Prof.

Ginevra Cerrina Feroni, Vice President, Dr.

Agostino Ghiglia and Attorney Guido Scorza, members, and

Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament

and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding

the protection of personal data, hereinafter "Code"), as amended by Legislative Decree No. 101 of

August 10, 2018, containing "Provisions for the adaptation

of national legislation to the provisions of

Regulation (EU) 2016/679";

HAVING REGARD to the report of the Local Police of the Municipality of

Ancona – Commercial Police Section – which reports on a control carried out on

June 22, 2022, at the restaurant named

"L'Ascensore", located in Ancona, Piazza IV Novembre

snc, managed by Palombaro s.r.l. (hereinafter "the

Company"), which confirmed the presence of a

properly functioning video surveillance system and the absence of suitable informational signs

regarding the presence of the cameras;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary

General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISED

1. The report received and the initiation of the proceeding.

By note dated June 29, 2022, the Local Police of the Municipality of

Ancona – Commercial Police Section – transmitted to this Authority the report of the control

carried out by the aforementioned Police Corps at the

restaurant named "L'Ascensore", located in Ancona,

Piazza IV Novembre snc, managed by Palombaro

s.r.l., which confirmed the presence of a

properly functioning video surveillance system and the absence of suitable informational signs

regarding the presence of the cameras.

Therefore, the Office, by note dated October 25, 2022 (prot.

No. 58398), proceeded to notify the act of initiation

of the sanctioning procedure, pursuant to Article

166, paragraph 5, of the Code in relation to the violation

of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

By note dated November 23, 2022, the Company sent

defensive writings stating that:

- the video surveillance system had been activated

only one month prior to the inspection (on May 14, 2022);

- that the installation of the system was aimed at protecting company assets against unlawful acts by third parties;

- that it had provided, immediately after the on-site inspection by the Local Police of Ancona, to place suitable informational signs regarding the presence of cameras inside and outside the premises. The statements made by the party are supported by photographic documentation attached to the defensive writings.

2. The legal framework of the processing carried out
The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency which requires that “data subjects must always be informed that they are about to enter a surveillance area.”

For this purpose, the data controller must place suitable informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs on video surveillance, published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that “Regarding video surveillance, the most important information must be indicated [by the controller] on the warning sign itself (first level), while additional mandatory details can be provided by other means (second level). The guidelines also provide that “Such information can be provided in combination with an icon to give, in a clearly visible, intelligible, and clearly legible manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations.” The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance, before entering the monitored area (approximately at eye level) “to allow the data subject to estimate which area is covered by a camera in order to avoid surveillance or adjust their behavior, if necessary.”

The processing of personal data carried out by the company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) and 13 of the

Regulation.

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings made, it emerged that the video surveillance system, installed at the premises of the restaurant activity named "L'Ascensore", managed by Palombaro s.r.l., was active and functioning and that no sign bearing the information referred to in Article 13 of the Regulation had been affixed.

In this specific case, it is therefore proven that a processing of personal data was carried out through a video surveillance system, in the absence of the required information. Such conduct is in contrast with what is established by Article 13 of the Regulation, according to which the data controller is obliged to provide the data subject with all information regarding the essential characteristics of the processing.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

The processing of personal data carried out by the Company is therefore unlawful, as outlined above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation.

The violation established in the terms set out in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

It should also be noted that, following the on-site inspection, the Company declared that it had affixed the informational signs regarding the presence of the cameras, substantiating this with photographic documentation attached to the defensive memoranda sent to the Authority.

5. Injunction order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation, by adopting an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative pecuniary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this specific case, the following circumstances have been taken into account:

- Regarding the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;
- The absence of specific previous violations by the company related to breaches of the data protection regulations;
- The circumstance that the company, as the data controller, sent defensive writings to the Authority declaring that it had made the processing compliant with the data protection regulations and substantiating its claims with appropriate documentation.

It is also believed that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the pecuniary sanction at €3,000.00 (three thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Palombaro s.r.l. through the use of the video surveillance system installed at the restaurant named "L'Ascensore," which it is found to manage, in the terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

ORDERS

Palombaro s.r.l. P.I. 02715000424, based in Ancona, Piazza IV Novembre snc, to pay the sum of €3,000.00 (three thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

INSTRUCTS

therefore the same Palombaro s.r.l. to pay the sum of €3,000.00 (three thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to

at half of the penalty imposed within the deadline referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the filing of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, September 28, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei